

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY SA

**COMPLAINANT MCS INDUSTRIES, INC.'S NOTICE OF NEW
DEVELOPMENTS REGARDING MOTION TO COMPEL DISCOVERY
FROM RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY SA**

Complainant MCS Industries, Inc. ("Complainant"), by and through its undersigned attorneys, writes to notify the Presiding Officer of several new developments since the filing of Complainant's motion to compel (the "Motion") on November 22, 2021 that (1) increase the urgency of Complainant's request in that motion to extend the discovery schedule in this case and (2) reinforce the appropriateness and necessity of that extension. Consistent with 46 C.F.R. Section 502.150(a)(4), this Notice does not reply to any aspect of Respondent MSC Mediterranean Shipping Company SA's ("Respondent") opposition to the Motion filed this past Monday.¹ However, in light of the new developments discussed herein, and to avoid the impending prejudice of being forced to proceed over the next two weeks with depositions on the basis of an incomplete factual record, Complainant respectfully requests that the Presiding Officer decide Complainant's request to extend the discovery schedule on an expedited basis, separately from the substantive aspects of the Motion. An extension is necessary in order to obtain the Presiding Officer's ruling

¹ Respondent's opposition does, however, contain legal arguments not previously raised in the pleadings or any motion that should not be considered without Complainant having a full opportunity to respond to them.

on Complainant's motion to compel, obtain a full and fair document production and interrogatory responses from Respondent, and complete depositions on an adequate evidentiary record.

Last Tuesday (the day after we filed the Motion), we received from Respondent's counsel an email that:

1. Provided, for the first time, and after more than two weeks of repeated inquiries, the availability of Respondent's employees Thomas DeMarino and Anna Kapica on December 3 and 7, 2021, respectively;
2. Refused to produce Respondent's corporate designee(s) for deposition on the originally noticed date, and suggested no alternative date;
3. Disclosed, for the first time, that Respondent would be making a supplemental document production; and
4. Raised, for the first time, Respondent's intention to notice additional depositions of multiple employees of Complainant.

At 4:57 p.m. on Wednesday afternoon, the night before Thanksgiving, Respondent provided access to a new document production that contained more documents than Respondent's ***entire prior document production*** in the case.² Substantially all of the documents in Respondent's new production are responsive to Complainant's Requests for Production, and therefore should have been included in Respondent's November 5 production. Indeed, many of the documents in last week's production are additional portions of email threads that were included in Respondent's initial production, suggesting that Respondent simply sat on these additional responsive documents for weeks until after Complainant filed the Motion.

² Notably, the additional production does not resolve any of the issues raised in the motion to compel. Instead, all of the additional documents produced were responsive to the requests that Respondent already has acknowledged are properly subject to discovery. Respondent accordingly had no basis whatsoever to withhold this supplemental production.

Despite the potential prejudice to Complainant of having to move forward with depositions now, before the Motion is decided and before Respondent has complied with its obligations to provide complete responses to documentary and written discovery, Complainant offered to proceed with depositions of Respondent's employees Thomas DeMarino and Anna Kapica, previously noticed for December 3 and 7, respectively, subject to a stipulation that Complainant could re-notice those deponents for a second time to complete their depositions after receiving any additional discovery subsequently produced by Respondent in the case. Today—the day before the first of those depositions was scheduled to take place—Respondent's counsel suddenly took the position that it would *not* agree to provide Respondent's witnesses a second time after the motion to compel is decided, and stated in a further email that Respondent would *not* make Respondent's witnesses available to testify as to all issues relevant to the claims and defenses in the case, and would instead limit their testimony only to the subjects of certain limited document requests included in the deposition notice.³ Respondent's counsel further took the position that the topics of discovery addressed in Complainant's motion to compel were “unnecessary” and “not properly discoverable”. In light of Respondent's unilateral, self-serving efforts at the last minute to limit the scope of depositions, we will need to postpone the depositions until after the Presiding Officer has ruled on the pending motion to compel, which will necessarily extend the deposition period past the December 13, 2021 target date.

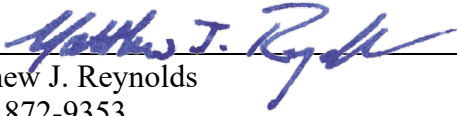
Unfortunately, these new developments suggest a strategy to deprive Complainant of the relevant documents and information we have requested, either by delaying their production to us or outright refusing to produce them, and then to weaponize the current case schedule against

³ These deposition notices, which were issued to individual percipient witnesses, contained *document requests* pursuant to 46 C.F.R. §§ 502.143(b)(2) and 502.146, but did not list any “topics” or purport in any way to limit the depositions to those document requests.

Complainant by forcing depositions to proceed on an inadequate record prior to the current Scheduling Order's December 13, 2021 target (1) without the documentary and written discovery necessary to take such depositions effectively, (2) subject to Respondent's baseless limitations on the scope of its witnesses' testimony, and (3) without Respondent's agreement to make its witnesses available again after the Motion is decided and additional discovery is produced. As stated in the Motion, the extension we are requesting is necessary, appropriate, and in no way prejudices Respondent. In light of these recent developments, we respectfully request that the Presiding Officer consider, and grant, the requested extension on an expedited basis, so that depositions can be rescheduled to proceed in an orderly fashion after the Motion is resolved.

Dated: December 2, 2021

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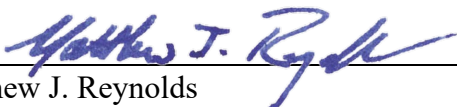
Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondent MSC Mediterranean Shipping Company SA by emailing copies of those documents to its counsel of record listed below:

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Dated: December 2, 2021



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